



IN THE HIGH COURT OF PUNJAB & HARYANA
AT CHANDIGARH

114

CRWP-12649-2024 (O&M)
Date of decision: 01.01.2025

Meena and another

...Petitioners

VERSUS

State of Punjab and others

...Respondents

CORAM : HON'BLE MR. JUSTICE VINOD S. BHARDWAJ

Present :- Mr. Amit Kashyap, Advocate for the petitioners.

VINOD S. BHARDWAJ, J. (Oral)

The petitioners namely Meena and Brijesh Kumar have approached this Court under Article 226 of the Constitution of India read with Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023 for seeking protection of their lives and personal liberty from private respondents No.4 to 6.

The contention of the petitioners is that both are major, aged 19 years 10 months and 26 years respectively and they have performed marriage against the wishes of their parents. In support thereof, copy of the Aadhaar Cards pertaining to the petitioners have been appended. The marriage of the petitioners was solemnized on 25.12.2024 at Man Bhadarkali Jotish Kendra, Mata Mansa Devi Market, Sector-4, Panchkula (Haryana) as per Hindu rites and rituals. The photographs and certificate



evidencing their marriage are appended as Annexures P-3 and P-4 respectively. The petitioners apprehend threat to their lives and claim that there is a constant danger of them being implicated in a false case.

Notice of motion restricted to respondents No.1 to 3 only.

Pursuant to supply of advance copy, Mr. Balwinder Singh, AAG, Punjab has appeared and accepted notice on behalf of respondents No.1 to 3.

Learned counsel for the petitioners states that a representation dated 25.12.2024 (Annexure P-5) has also been submitted by the petitioners to the respondent No.2- Senior Superintendent of Police, SAS Nagar Mohali.

Learned State counsel has no objection if appropriate direction for providing requisite protection to the petitioners is given.

Without examining the question of legality and validity of the marriage and expressing any opinion thereon, the petition is disposed of with the directions to respondent No.2- Senior Superintendent of Police, SAS Nagar Mohali to look into the grievances of the petitioners as set out in the petition and also expressed in the representation (Annexure P-5) and take appropriate action for protection of their lives and liberty as may be warranted by the circumstances.

However, it is clarified that in case any criminal case has been/is registered against the petitioners, nothing in this order shall be construed as a bar for taking appropriate action by the police authorities in respect thereof in accordance with law.



The Registry is directed to send a copy of this order along with copy of the petition and above-said representation to respondent No.2-Senior Superintendent of Police, SAS Nagar Mohali for requisite compliance.

(VINOD S. BHARDWAJ)
JUDGE

01.01.2025

Mangal Singh

Whether speaking/reasoned : Yes/No
Whether reportable : Yes/No